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Case Number: 25NNCV00140 Hearing Date: August 14, 2026 Dept: P

[TENTATIVE] ORDER GRANTING PLAINTIFFS'

MOTIONS TO COMPEL FURTHER RESPONSES TO REQUEST FOR ADMISSIONS, SET TWO and
FURTHER RESPONSES TO FORM INTERROGATORIES, SET THREE and GRANTING MONETARY
SANCTIONS

I. INTRODUCTION

This is a medical malpractice

action arising from spinal surgery performed by Defendant Shane S. Pak, M.D.

("Dr. Pak" or "Defendant") on Plaintiff Sai K. Wu ("Plaintiff") at Pacific

Orthopaedic Associates ("Pacific") in September 2023. Plaintiffs Sai K. Wu and

Shirley Wu (collectively, "Plaintiffs") allege that Dr. Pak's negligent

surgical technique and postoperative management caused permanent neurological

injury, including foot drop and loss of bladder function. Shirley Wu asserts a

derivative claim for loss of consortium.

On April 27, 2026, Plaintiffs filed

the instant motions to compel further responses to Requests for Admission

(RFA), Set Two, and Form Interrogatory (FROG) No. 17.1, Set Three. No

oppositions to the motions were filed. Defendant's counsel states that his

office failed to alert him that multiple discovery motions were on calendar and

acknowledges responsibility for the oversight. (Packer Decl., ¶ 11.)

II. LEGAL STANDARD

A motion to compel a further

response to interrogatories or production of documents must be noticed within

45 days of the service of the verified response, or any supplemental verified

response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

An unverified response is tantamount to no response at all. (See *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) However, objections to interrogatories and requests for production are not required to be verified because “objections are legal conclusions interposed by

counsel, not factual assertions by a party.” (*Blue Ridge Insurance Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 345.)

The party requesting admissions may move for an order compelling a further response if that party deems: “(1) An answer to a particular request is evasive or incomplete. [or] (2) An objection to a particular request is without merit or too general.” (Code Civ. Proc., § 2033.290, subd. (a).)

III. ANALYSIS

Plaintiffs move for an order compelling Defendant Pak to provide further responses to RFA, Set Two, Nos. 13-14 and 16-21, and corresponding further responses to FROG No. 17.1, Set Three. (RFA Motion, p. 2; FROG Motion, p. 2.)

The Court analyzes below.

RFAs Nos. 13-14, 16-21 and FROG Nos. 17.1

Here, the challenged RFAs generally concern Defendant’s recollection of Plaintiff Sai K. Wu and the care and surgeries Defendant provided, as well as whether Plaintiff gave informed consent for the surgeries performed on September 29 and November 3, 2023. (SS, pp. 8-16.) Defendant asserted objections that the RFAs were vague, ambiguous, uncertain, and overbroad. As to RFAs Nos. 13-14 and 16-19, Defendant further

responded that he lacked an “independent recollection” of the matters identified in the requests but qualified his responses by stating that he could infer additional information from the medical records. As to RFAs Nos. 20 and 21, Defendant denied the requests, subject to the same objections. (SS, pp. 8-16.)

The Court finds Defendant's objections to RFAs Nos. 13-14 and 16-21 are without merit. The requests identify the particular subject matter at issue and are sufficiently clear to permit substantive responses. Moreover, as to RFAs Nos. 13-14 and 16-19, Defendant's distinction between an independent recollection and information he may infer from medical records does not render the requests vague or ambiguous. Although Defendant may qualify an admission when necessary, any qualification must fairly respond to the substance of the requested admission. Accordingly, Defendant shall provide further verified responses to RFAs Nos. 13-14 and 16-19 without the objections asserted. The Court does not require Defendant to admit any particular request; Defendant may admit, deny, or provide a qualified response consistent with Code of Civil Procedure section 2033.220.

As to RFAs Nos. 20 and 21, Defendant provided unequivocal denials. (SS, pp. 14-16.) Although the Court overrules Defendant's objections to these requests, the Court finds no further substantive response to the RFAs is required. As discussed below, however, Defendant's responses to FROG No. 17.1 concerning RFAs Nos. 20 and 21 remain at issue.

FROG 17.1

As to RFA Nos. 13, 14, 18, and 19, Defendant provided qualified responses but no corresponding response to FROG No. 17.1. (SS, pp. 8-10, 13-14.) Because Defendant did not provide unqualified admissions, responses to FROG No. 17.1 were required. Further responses are warranted.

As to RFA Nos. 16 and 17, Defendant served supplemental responses to FROG No. 17.1. (FROG Motion, p. 4.) However, the responses generally refer to medical records and deposition testimony and identify unspecified providers, nurses, and hospital personnel as persons with knowledge. (SS, pp. 10-12.) The Court finds the responses insufficient to identify the supporting facts, persons, and documents with reasonable

specificity. Further responses are warranted.

Similarly, although Defendant denied RFA Nos. 20 and 21 concerning informed consent, his responses to FROG No. 17.1 generally identify “perhaps” Plaintiff’s spouse, unspecified office or hospital personnel, and categories of medical records. (SS, pp. 14-16.) The Court finds further responses warranted to identify the facts, persons, and documents supporting Defendant’s denials with reasonable specificity.

Based on the foregoing, the Court GRANTS in part and DENIES in part Plaintiffs’ motion to compel further responses to RFAs Nos. 13-14 and 16-21. The motion is GRANTED as to RFAs Nos. 13-14 and 16-19 and DENIED as to RFAs Nos. 20 and 21, except that Defendant’s objections to RFAs Nos. 20 and 21 are overruled.

The Court GRANTS Plaintiffs’ motion to compel further responses to FROG No. 17.1 corresponding to RFAs Nos. 13-14 and 16-21.

Sanctions

Code of Civil Procedure section 2033.290, subdivision (d), provides that the court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses to requests for admission, unless the court finds that the person acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2033.290, subd. (d); *Deck v. Developers Investment Co., Inc.* (2023) 89 Cal.App.5th 808, 828.)

Plaintiffs request monetary sanctions against Defendant and his counsel in the amount of \$3,000 in connection with the RFA motion and \$1,000 in connection with the FROG motion. Given that the motions are unopposed, no replies were filed, and the motions involve substantially overlapping issues, the Court finds \$2,000 in sanctions reasonable. (Hoffman Decl., ¶¶ 5-7.)

Thus, the Court awards monetary sanctions in the amount of \$2,000 against Defendant and his counsel, jointly and severally, payable within 30 days of notice of this order

IV. ORDER

The Court

GRANTS Plaintiffs' motion to compel further responses to RFA Nos. 13-14, 16-19 and DENYS as to Nos. 20 and 21, with Defendant's objections to Nos. 20-21 overruled.

The Court GRANTS Plaintiffs' motion to compel further responses to FROG No. 17.1 corresponding to RFAs Nos. 13-14 and 16-21. Defendant shall serve further responses within 30 days' notice of this order.

The Court further GRANTS request for monetary sanctions in the reduced amount of \$2,000, payable by Defendant and counsel jointly and severally within 30 days' notice of this order.

Plaintiff is to give notice.

Dated: August 14, 2026

JARED

D. MOSES

JUDGE OF THE SUPERIOR COURT

[TENTATIVE] ORDER GRANTING PLAINTIFFS
MOTION TO COMPEL FURTHER RESPONSES TO SPROGS, SET TWO and DENYING MONETARY
SANCTIONS

I. INTRODUCTION

This is a medical malpractice action arising from spinal surgery performed by Defendant Shane S. Pak, M.D. ("Dr. Pak" or "Defendant") on Plaintiff Sai K. Wu ("Plaintiff") at Pacific Orthopaedic Associates ("Pacific") in September 2023. Plaintiffs Sai K. Wu and Shirley Wu (collectively, "Plaintiffs") allege that Dr. Pak's negligent surgical technique and postoperative management caused permanent neurological injury, including foot drop and loss of bladder function. Shirley Wu asserts a derivative claim for loss of consortium.

On June 3, 2026, Plaintiff filed the instant motion to compel further responses to Special Interrogatories (SPROGS), Set Two, Nos. 19 and 20. Defendant filed an opposition on July 20, 2026, and Plaintiff filed a reply on August 7, 2026.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (*Id.*) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

An unverified response is tantamount to no response at all. (See *Appleton v. Superior Court* (1988) 206 Cal.App.3d 632, 636.) However, objections to interrogatories and requests for production are not required to be verified because “objections are legal conclusions interposed by

counsel, not factual assertions by a party.” (*Blue Ridge Insurance Co. v. Superior Court* (1988) 202 Cal.App.3d 339, 345.)

III. ANALYSIS

Plaintiff moves to compel further responses to SPROGS, Set Two, Nos. 19 and 20. SPROG No. 19 asks Defendant to state how many of his patients, during the past five years, developed persistent postoperative foot drop secondary to anterior tibialis muscle weakness after Defendant operated on their lumbar spine. SPROG No. 20 similarly asks how many patients developed a persistent postoperative neurogenic bladder following lumbar spine surgery. Defendant objected on grounds including relevance, overbreadth, burden, privacy, privilege, and ambiguity. (SS, pp. 4-6.)

Plaintiff argues the information is

relevant to determining Defendant's experience with and response to postoperative complications similar to those allegedly suffered by Plaintiff and may lead to evidence concerning Defendant's custom and practice. Plaintiff further argues that the interrogatories seek only the number of patients who experienced these conditions, not their identities or medical records. (Motion, pp. 4-7.)

Defendant opposes, arguing that the experiences of other patients are irrelevant to whether Defendant complied with the standard of care in treating Plaintiff. Defendant further contends that responding would require review of hundreds of patient charts and potentially implicate the privacy rights of nonparty patients. (Opposition, pp. 7-9.)

The Court finds further responses warranted. The information sought is sufficiently relevant to the subject matter of this action, including Plaintiff's investigation of Defendant's experience with and response to postoperative neurological complications similar to those allegedly suffered by Plaintiff. Moreover, the interrogatories presently seek only the number of patients who developed the identified conditions; they do not seek patient identities or medical records. Thus, Defendant has not established that responding to the interrogatories would itself violate the privacy rights of nonparty patients.

The Court is also not persuaded that the burden of responding clearly outweighs the potential relevance of the information sought. Although Defendant contends that responding would require review of hundreds of patient charts, Defendant is required to make a reasonable and good faith effort to obtain information reasonably available to him. (Code Civ. Proc., § 2030.220, subd. (c).) The interrogatories do not presently require Defendant to produce or disclose the underlying patient records.

Thus, the Court GRANTS Plaintiff's motion to compel further responses to SPROGS Nos. 19 and 20.

Sanctions

Code of Civil Procedure section 2033.290, subdivision (d), provides that the court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or

opposes a motion to compel further responses to requests for admission, unless the court finds that the person acted with substantial justification or that other circumstances make the imposition of sanctions unjust. (Code Civ. Proc., § 2033.290, subd. (d); *Deck v. Developers Investment Co., Inc.* (2023) 89 Cal.App.5th 808, 828.)

Plaintiff requests \$2,400 in monetary sanctions against Defendant. Defendant likewise requests \$2,400 in sanctions against Plaintiff and his counsel. (Motion, p. 2; Opposition, pp. 10-11.)

The Court declines to impose sanctions on either party. Although the Court grants Plaintiff's motion, the Court finds Defendant acted with substantial justification in opposing the motion given the legitimate dispute concerning the relevance, burden, and privacy implications of discovery involving nonparty patients. The Court likewise finds Plaintiff acted with substantial justification in bringing the motion.

IV. ORDER

The Court GRANTS Plaintiffs motion to compel further responses to SPROGs, Set Two Nos. 19 and 20. Defendant shall serve further responses within 30 days' notice of this order.

The Court
DENIES the requests for monetary sanctions.

Plaintiff is to give notice.

Dated: August 14, 2026

JARED D. MOSES
JUDGE OF THE SUPERIOR COURT